CORAM: HER WORSHIP BIANCA GYAMERA-BEEKO MAGISTRATE SITTING AT THE DISTRICT COURT MAMPONG-AKWAPIM ON 24TH DAY OF JUNE, 2025.

SUIT NO: A9/24/22

BENJAMIN DARKO ASANTE ……. PLAINTIFF

VRS.

GIDEON SUNU ……. DEFENDANT

Plaintiff present

Defendant absent

JUDGMENT.

On 4th April 2022, the plaintiff in this matter filed a writ seeking recovery of possession to house number B/400, a four bedroom house situate at Asesaso - Akuapem. The defendant pleaded not liable to this claim.

The plaintiff's case is that the subject matter building belonged to his father, Emmanuel Armah Asante and that same was devised in a will to named beneficiaries including the plaintiff. A few years ago, the plaintiff's cousin permitted the defendant to live in the house but due to his unruly conduct, a decision had been made to evict him. The decision had been communicated to the defendant but he refuses to leave the house. Plaintiff has reported the matter to the Akropong Police Station but defendant shows no remorse and is not even ready to apologise hence the present action.

For his part, the defendant claims that the house is a family house and that he is therefore entitled to live in it.

The issue for the court to determine is:

1. Whether the subject matter house is the property of the plaintiff or family property.

Evidentiary burden

Section 14 of the Evidence Act, 1975 (Act 323) provides that

> ***except as otherwise provided by law, unless and until it is shifted a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence he is asserting***.

In the case of Serwah v Kesse (1960) GLR 227, the Supreme Court stated that "***the general rule, of course, is that the onus probandi lies on the party who substantially asserts the affirmative of the issue***". They laid down the following tests for who bears this burden:

> "***The best tests for ascertaining on whom the burden of proof lies are, to consider first which party would succeed if no evidence were given on either side; and, secondly, what would be the effect of striking out of the record the allegation to be proved. The onus lies on whichever party would fail, if either of these steps were pursued See Taylor on Evidence, s.365 quoted in Stroud, Judicial Dictionary (3rd. ed.) p. 1996.***"

Accordingly, the plaintiff bears the burden of persuasion in this matter. Section 11(1) of Act 323 explains the burden of persuasion as ***the obligation of a party to introduce sufficient evidence to avoid a ruling against him on an issue***. This being a civil matter, the plaintiff is required to prove his case upon a preponderance of probabilities in accordance with section 12 of the Evidence Act 1975 (NRCD 323).

The plaintiff testified for himself and called two witnesses, Akosua Serwaa who allowed the defendant to move into the house and Ellen Adusei Poku, the person who vouched to Akosua Serwaa that the defendant was a relative so he should be allowed to live in the house. The plaintiff's testimony was that his mother died when he was about three years old. The sudden and early death of his mother made his father conscious of the fact that he too could die young. His father therefore made a will in 1971. At the time he made the will, he had not built the house in question but he added a residuary clause stating that any other property he acquired thereafter should become the property of the plaintiff and his brother, William Armah Asante, after his death. Plaintiff testified that his father owned a printing press and that they used to help him during vacations. At a point, his father travelled

outside the country and left plaintiff and his brother in charge of the business. With proceeds from the business, the plaintiff and his brother built the subject matter house. When their father passed, the brothers applied to the court and were granted Letters of Administration with Will annexed. For about 20 years now, the house has been in their possession. About 8 years ago, the defendant went to see Adam Serwaa to ask to be allowed into the house but since she did not know him, she asked her mother who confirmed that the defendant was a relative. She then allowed him to move into the house. Subsequently, they realised that the defendant had set up his business on the premises and he stopped abiding by the rules given to him as conditions for staying in the house. The defendant has made a mess of the property and any attempt to talk to him about doing better results in a quarrel. During one such quarrel, he drew a knife to attack Serwaa. The matter was reported to the Adukrom Police and they were referred to the DOVSU at Akropong Police Station. At DOVSU Akropong, the plaintiff gave the defendant a letter of eviction. A copy of the letter was tendered into evidence and marked Exhibit A. A copy of the will was also tendered into evidence and marked Exhibit B. Finally, a site plan was also tendered into evidence and marked Exhibit C.

The testimony of Akosua Serwaa (PW1) corroborated the testimony of the plaintiff that she was the one who gave the defendant access to the house. She testified also that she had lived with her grandfather who built the house for about 14 years. They lived there alone even though he had children. After he died, she continued to live in the house alone. At the time when the defendant came to ask her to live there, she was living there with one Asantewaa. She testified that after she got married she moved out of the house leaving Asantewaa and the defendant in the house. Subsequently, she kept receiving complaints that the two were quarrelling and she would then have to come to the town to settle the disputes. After several such incidents, she decided she had had enough so both of them should vacate the premises. Asanteqaa did but the defendant has refused to leave. On one occasion, the defendant quarrelled with her and attacked her with a knife. She therefore threw his things out of the house but the police came to plead on his behalf so she gave him a smaller room to occupy. Defendant signed a document that he would move out but has failed to. Defendant began

claiming ownership of the house and threatened to sue her so she informed her uncles, the plaintiff and his brother.

Ellen Adusei Poku (PW2) also corroborated the plaintiff's testimony that it was PW1 who gave the defendant access to the property. She also corroborated PW1's testimony about the fights between defendant and Asantewaa and the decision that both of them should leave the house. She also corroborated PW1's testimony that the defendant had threatened to kill her and that the police had asked that the defendant be given time to move. She added that subsequently when they went to the police to ask for their assistance to evict the defendant, they asked for a court order. Under cross-examination when the defendant put it to PW2 that the subject matter house belongs to William Armah Kofi and Monkosah, PW2 answered emphatically that the said Mankosah was her mother and that the house did not belong to her.

Defendant testified for himself and even though he had indicated that he would call about three witnesses to testify in support of his case, when the time came, he told the court that the witness he had intended to call on that day, Beatrice Oparebea, was very ill so she could not come to court. Regarding the other two witnesses, he told the court that one of them died in December and the other two years ago.

The defendant's testimony was that the plaintiff had no authority to evict him because the house was not mentioned in the will he had tendered as evidence. He claimed that the house had been put in his care after the plaintiff's father died. When plaintiff's father died, Mama Ohenewa was put in charge of the building and the cocoa farms that the plaintiff's father had been in charge of. When Mama Ohenewa became old she appointed defendant to take up that responsibility. The defendant testified that since the old lady died to date, he had been managing the property and bearing related expenses both for the house and the cocoa farms. He testified that this had been the case since 2005. He ended by telling the court that he was the head of the family. He was cross-examined by the plaintiff.

Having heard both sides, I find the plaintiff's case more probable than that of the defendant's. I note that throughout the defendant's cross-examination of the plaintiff and his witnesses, the defendant never asked any questions regarding their testimony of how

he came to live in the house, the quarrels between him and Asantewaa, the events said to have happened at the police station and PW1's claim that she threw him out and only let him back in because the police pleaded on this behalf. The Court of Appeal in the case of **Quagraine v Adams [1981] GLR at page 599** held that where a party makes an averment and his opponent fails to cross examine on it, the opponent will be deemed to have acknowledged sub-silentio that averment by failure to cross-examine. I am aware that cases such as **Wiafe v Kom [1973] 1GLR 240** and **Gyan alias Amoah v Dabrah [1974] 2 GLR 318** enjoin the court not to apply the above mentioned rule strictly in the case of illiterate persons representing themselves in litigation. However, in this case, the defendant is not illiterate. I am satisfied that he very much appreciated the import of those pieces of evidence and he would have denied them if they were not true.

Consequently, I find as a fact that the house in question belongs to the plaintiff and his brother. I also find that the defendant came to occupy the house only because PW1 granted him access. By virtue of his ownership of the house, the plaintiff is entitled to recover possession of the house from the defendant and I so hold. The defendant is hereby ordered to vacate the premises before 24th July, 2025. Should the defendant fail to vacate the premises by the said date, the Ghana Police Service is ordered to assist the plaintiff evict him. Cost of GHS2,000 is awarded against the defendant.

SGD.

H/W BIANCA GYAMERA-BEEKO